

# MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

---

## APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(February 1, 2022 through February 28, 2022)

|                               |                                                |        |
|-------------------------------|------------------------------------------------|--------|
| Coston, Matter of, v Thompson | App Div, 4th Dept: 2021<br>NY Slip Op 73907(U) | 2/2/22 |
| Govender v Buingye            | Sup Ct, Albany County,<br>10/20/21             | 2/2/22 |

---

## APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2022 through February 28, 2022)

|                                 |                                                                        |                                      |
|---------------------------------|------------------------------------------------------------------------|--------------------------------------|
| People v Abdul-Aleem<br>(Yahya) | App Div, 2d Dept: 2021 NY Slip Op<br>67258(U) (Queens)                 | dismissed 2/16/22<br>(Cannataro, J.) |
| People v Abdul-Aleem<br>(Yahya) | App Div, 2d Dept: 2021 NY Slip Op<br>75223(U) (Queens)                 | dismissed 2/16/22<br>(Cannataro, J.) |
| People v Abdullah               | 3d Dept: 198 AD3d 1101 (Albany)                                        | denied 2/9/22<br>(DiFiore, Ch. J.)   |
| People v Abidov                 | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 74 Misc 3d 34 (Kings) | denied 2/28/22<br>(Wilson, J.)       |
| People v Age                    | 4th Dept: 195 AD3d 1464 (Oneida)                                       | denied 2/28/22<br>(Singas, J.)       |
| People v Allen                  | 3d Dept: 199 AD3d 1127 (Cortland)                                      | denied 2/17/22<br>(Rivera, J.)       |
| People v Alvarez                | 1st Dept: 198 AD3d 514 (Bronx)                                         | denied 2/28/22<br>(Cannataro, J.)    |
| People v Ballard                | 3d Dept: 200 AD3d 1476 (Sullivan)                                      | denied 2/23/22<br>(Garcia, J.)       |
| People v Barrow                 | 2d Dept: 199 AD3d 1013 (Queens)                                        | denied 2/15/22<br>(Cannataro, J.)    |
| People v Behlin                 | 1st Dept: 200 AD3d 474 (NY)                                            | denied 2/28/22<br>(Wilson, J.)       |
| People v Bello                  | 1st Dept: 199 AD3d 532 (NY)                                            | denied 2/22/22<br>(DiFiore, Ch. J.)  |
| People v Brooks                 | 2d Dept: 200 AD3d 904 (Nassau)                                         | denied 2/3/22<br>(Rivera, J.)        |

|                             |                                                                        |                                                           |
|-----------------------------|------------------------------------------------------------------------|-----------------------------------------------------------|
| People v Bruno              | 2d Dept: 195 AD3d 1039 (Kings)                                         | denied<br>reconsideration<br>2/25/22<br>(Cannataro, J.)   |
| People v Bufford            | 1st Dept: 198 AD3d 430 (NY)                                            | denied 2/14/22<br>(Cannataro, J.)                         |
| People v Byron              | 1st Dept: 200 AD3d 436 (Bronx)                                         | denied 2/15/22<br>(Cannataro, J.)                         |
| People v Caballero          | 4th Dept: 199 AD3d 1468 (Erie)                                         | denied 2/3/22<br>(Rivera, J.)                             |
| People v Campanioni         | 1st Dept: 199 AD3d 474 (NY)                                            | denied 2/28/22<br>(Wilson, J.)                            |
| People v Chambers           | 2d Dept: 200 AD3d 944 (Kings)                                          | denied 2/10/22<br>(Garcia, J.)                            |
| People v Chandler           | 4th Dept: 200 AD3d 1739 (Niagara)                                      | denied 2/22/22<br>(Garcia, J.)                            |
| People v Coley              | App Div, 3d Dept: 2021 NY Slip Op<br>64803(U) (Ulster)                 | dismissed 2/3/22<br>(Rivera, J.)                          |
| People v Collins            | 1st Dept: 199 AD3d 580 (NY)                                            | denied 2/25/22<br>(DiFiore, Ch. J.)                       |
| People v Cooper             | 3d Dept: 199 AD3d 1061 (Broome)                                        | denied 2/25/22<br>(Wilson, J.)                            |
| People v Copo               | 3d Dept: 200 AD3d 1184 (Schenectady)                                   | denied 2/28/22<br>(DiFiore, Ch. J.)                       |
| People v Cucuta             | 1st Dept: 200 AD3d 580 (NY)                                            | denied 2/16/22<br>(Cannataro, J.)                         |
| People v Curtis             | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 74 Misc 3d 1 (Queens) | denied 2/23/22<br>(Garcia, J.)                            |
| People v Davis (Kivon)      | 4th Dept: 199 AD3d 1331 (Onondaga)                                     | denied 2/10/22<br>(Garcia, J.)                            |
| People v Davis<br>(Raymond) | 1st Dept: 200 AD3d 436 (Bronx)                                         | denied 2/9/22<br>(Singas, J.)                             |
| People v Davis (Robert)     | 1st Dept: 201 AD3d 527 (NY)                                            | denied 2/28/22<br>(Rivera, J.)                            |
| People v Davis (Tommy)      | 4th Dept: 198 AD3d 1355 (Onondaga)                                     | denied 2/15/22<br>(Cannataro, J.)                         |
| People v Dean               | 4th Dept: 198 AD3d 1306 (Monroe)                                       | denied 2/15/22<br>(Cannataro, J.)                         |
| People v Deguzman           | 2d Dept: 198 AD3d 916 (Kings)                                          | denied 2/28/22<br>(Rivera, J.)                            |
| People v Delacruz           | 4th Dept: 193 AD3d 1340 (Oneida)                                       | denied 2/28/22<br>(Singas, J.)                            |
| People v De Los Santos      | App Div, 1st Dept: 2021 NY Slip Op<br>75692(U) (NY)                    | denied 2/28/22<br>(Wilson, J.)                            |
| People v Depas              | 2d Dept: 199 AD3d 699 (Rockland)                                       | denied<br>reconsideration<br>2/24/22<br>(DiFiore, Ch. J.) |
| People v DiStefano          | 4th Dept: 200 AD3d 1726 (Ontario)                                      | denied 2/16/22<br>(DiFiore, Ch. J.)                       |
| People v Duncanson          | 2d Dept: 200 AD3d 905 (Kings)                                          | denied 2/3/22<br>(Rivera, J.)                             |

## MEMORANDA

927

|                          |                                                             |                                       |
|--------------------------|-------------------------------------------------------------|---------------------------------------|
| People v Edwards         | 1st Dept: 200 AD3d 581 (NY)                                 | denied 2/25/22<br>(Cannataro, J.)     |
| People v Ewers           | 2d Dept: 195 AD3d 857 (Nassau)                              | denied 2/28/22<br>(Wilson, J.)        |
| People v Faeth           | 4th Dept: 199 AD3d 1406 (Wayne)                             | denied 2/28/22<br>(Rivera, J.)        |
| People v Faulkner        | 2d Dept: 200 AD3d 1068 (Richmond)                           | denied 2/25/22<br>(Wilson, J.)        |
| People v Fells           | 2d Dept: 199 AD3d 936 (Nassau)                              | denied 2/25/22<br>(Wilson, J.)        |
| People v Flores          | 1st Dept: 198 AD3d 546 (NY)                                 | denied 2/28/22<br>(Cannataro, J.)     |
| People v Fofana          | 1st Dept: 200 AD3d 502 (Bronx)                              | denied 2/28/22<br>(Rivera, J.)        |
| People v Fofona          | 1st Dept: 200 AD3d 502 (Bronx)                              | denied 2/28/22<br>(Rivera, J.)        |
| People v Foucha          | 4th Dept: 199 AD3d 1456 (Monroe)                            | denied 2/17/22<br>(Rivera, J.)        |
| People v George          | 2d Dept: 199 AD3d 831 (Queens)                              | denied* 2/3/22<br>(Rivera, J.)        |
| People v Gilbert         | 4th Dept: 199 AD3d 1385 (Monroe)                            | denied 2/25/22<br>(Cannataro, J.)     |
| People v Gilbert-Jackson | 4th Dept: 199 AD3d 1385 (Monroe)                            | denied 2/25/22<br>(Cannataro, J.)     |
| People v Gilmore         | 3d Dept: 200 AD3d 1184 (Schenectady)                        | denied 2/28/22<br>(DiFiore, Ch. J.)   |
| People v Go              | 3d Dept: 200 AD3d 1476 (Sullivan)                           | denied 2/23/22<br>(Garcia, J.)        |
| People v Godfrey         | 1st Dept: 199 AD3d 590 (NY)                                 | denied 2/10/22<br>(Garcia, J.)        |
| People v Goldstein       | 2d Dept: 200 AD3d 802 (Kings)                               | denied 2/22/22<br>(Garcia, J.)        |
| People v Golston         | App Div, 3d Dept: 2021 NY Slip Op<br>75491(U) (Schenectady) | dismissed 2/4/22<br>(DiFiore, Ch. J.) |
| People v Gomez           | App Term, 1st Dept: 73 Misc 3d 140(A)<br>(Bronx)            | denied 2/10/22<br>(Garcia, J.)        |
| People v Guillen         | 1st Dept: 199 AD3d 582 (NY)                                 | denied 2/3/22<br>(Rivera, J.)         |
| People v Gunther         | 1st Dept: 200 AD3d 582 (NY)                                 | denied 2/28/22<br>(Singas, J.)        |
| People v Hahn            | 4th Dept: 199 AD3d 1467 (Genesee)                           | denied 2/9/22<br>(Singas, J.)         |
| People v Hansel          | 3d Dept: 200 AD3d 1327 (Broome)                             | denied 2/28/22<br>(Wilson, J.)        |
| People v Hardware        | 1st Dept: 200 AD3d 431 (NY)                                 | denied 2/10/22<br>(Garcia, J.)        |

---

\* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Galindo* (70 Misc 3d 16 [App Term, 2d Dept, 2d, 11th & 13th Jud Dists 2020], *lv granted* 36 NY3d 1056 [2021]).

|                          |                                                          |                                                         |
|--------------------------|----------------------------------------------------------|---------------------------------------------------------|
| People v Harris          | 1st Dept: 199 AD3d 497 (Bronx)                           | denied 2/28/22<br>(Singas, J.)                          |
| People v Henderson       | 4th Dept: 198 AD3d 1337 (Onondaga)                       | dismissed 2/16/22<br>(Cannataro, J.)                    |
| People v Hewitt          | 3d Dept: 201 AD3d 1041 (Warren)                          | denied 2/24/22<br>(Rivera, J.)                          |
| People v Heyward         | 2d Dept: 198 AD3d 919 (Queens)                           | denied 2/23/22<br>(Cannataro, J.)                       |
| People v Hill (Maleak)   | 1st Dept: 199 AD3d 588 (NY)                              | denied 2/10/22<br>(Garcia, J.)                          |
| People v Hill (Quentin)  | App Div, 4th Dept, 11/12/21 (Erie)                       | dismissed 2/15/22<br>(Cannataro, J.)                    |
| People v Hines           | 3d Dept: 200 AD3d 1217 (Schenectady)                     | denied 2/28/22<br>(Singas, J.)                          |
| People v Holley          | 4th Dept: 198 AD3d 1351 (Monroe)                         | denied 2/17/22<br>(Cannataro, J.)                       |
| People v Horton          | App Div, 3d Dept: 2021 NY Slip Op<br>67719(U) (Tompkins) | denied<br>reconsideration<br>2/16/22<br>(Cannataro, J.) |
| People v Jackson (Azya)  | 4th Dept: 199 AD3d 1385 (Monroe)                         | denied 2/25/22<br>(Cannataro, J.)                       |
| People v Jackson (Craig) | App Div, 2d Dept: 2021 NY Slip Op<br>73977(U) (Queens)   | dismissed 2/8/22<br>(Singas, J.)                        |
| People v James           | 2d Dept: 200 AD3d 711 (Suffolk)                          | denied 2/10/22<br>(Garcia, J.)                          |
| People v Jason R.        | 1st Dept: 198 AD3d 496 (Bronx)                           | denied 2/22/22<br>(Cannataro, J.)                       |
| People v Johnson         | 2d Dept: 199 AD3d 938 (Nassau)                           | denied 2/28/22<br>(Rivera, J.)                          |
| People v Jones (Dahmir)  | 1st Dept: 200 AD3d 566 (NY)                              | denied 2/22/22<br>(Singas, J.)                          |
| People v Jones (Jonnie)  | 2d Dept: 200 AD3d 1013 (Queens)                          | denied 2/17/22<br>(Rivera, J.)                          |
| People v Jones (Paul)    | 3d Dept: 199 AD3d 1069 (Sullivan)                        | denied 2/22/22<br>(Cannataro, J.)                       |
| People v King            | App Term, 1st Dept: 73 Misc 3d 143(A)<br>(NY)            | denied 2/28/22<br>(DiFiore, Ch. J.)                     |
| People v Lantigua        | 1st Dept: 198 AD3d 514 (Bronx)                           | denied 2/28/22<br>(Cannataro, J.)                       |
| People v Lavayen         | 2d Dept: 200 AD3d 1069 (Queens)                          | denied 2/28/22<br>(Singas, J.)                          |
| People v Liggins         | 4th Dept: 195 AD3d 1464 (Oneida)                         | denied 2/28/22<br>(Singas, J.)                          |
| People v Lino            | 1st Dept: 199 AD3d 615 (NY)                              | denied 2/9/22<br>(Singas, J.)                           |
| People v Lobes           | 4th Dept: 199 AD3d 1393 (Steuben)                        | denied 2/17/22<br>(Rivera, J.)                          |
| People v Loday           | App Term, 1st Dept: 73 Misc 3d 137(A)<br>(NY)            | denied 2/22/22<br>(Garcia, J.)                          |

## MEMORANDA

929

|                            |                                                                        |                                                  |
|----------------------------|------------------------------------------------------------------------|--------------------------------------------------|
| People v Lombardo          | 3d Dept: 200 AD3d 1479 (Broome)                                        | denied 2/28/22<br>(Singas, J.)                   |
| People v Lopez             | 1st Dept: 198 AD3d 515 (NY)                                            | denied 2/17/22<br>(Cannataro, J.)                |
| People v Magliocco         | 2d Dept: 199 AD3d 705 (Putnam)                                         | denied 2/24/22<br>(DiFiore, Ch. J.)              |
| People v Marchese          | App Term, 2d Dept, 9th & 10th Jud Dists:<br>73 Misc 3d 144(A) (Nassau) | denied 2/28/22<br>(DiFiore, Ch. J.)              |
| People v Marrero           | 4th Dept: 199 AD3d 1471 (Monroe)                                       | denied 2/17/22<br>(Rivera, J.)                   |
| People v Martinez          | App Term, 1st Dept: 73 Misc 3d 128(A)<br>(NY)                          | denied 2/14/22<br>(Cannataro, J.)                |
| People v Mayes             | 2d Dept: 200 AD3d 718 (Dutchess)                                       | denied 2/22/22<br>(DiFiore, Ch. J.)              |
| People v McCray            | 2d Dept: 200 AD3d 720 (Nassau)                                         | denied 2/22/22<br>(Garcia, J.)                   |
| People v McDermott         | 4th Dept: 200 AD3d 1732 (Oneida)                                       | denied 2/28/22<br>(Singas, J.)                   |
| People v<br>McKenzie-Smith | 4th Dept: 187 AD3d 1668 (Monroe)                                       | granted 2/28/22<br>(Wilson, J.)                  |
| People v Mejia             | 4th Dept: 198 AD3d 1330 (Erie)                                         | denied 2/17/22<br>(Cannataro, J.)                |
| People v Melendez          | 1st Dept: 201 AD3d 444 (Bronx)                                         | denied 2/23/22<br>(DiFiore, Ch. J.)              |
| People v Mendoza           | 2d Dept: 200 AD3d 1018 (Queens)                                        | denied 2/24/22<br>(DiFiore, Ch. J.)              |
| People v Moore             | 4th Dept: 198 AD3d 1304 (Onondaga)                                     | denied 2/15/22<br>(Cannataro, J.)                |
| People v Morris            | 2d Dept: 200 AD3d 995 (Kings)                                          | denied 2/28/22<br>(Singas, J.)                   |
| People v Murphy            | 2d Dept: 200 AD3d 1012 (Kings)                                         | denied 2/16/22<br>(Cannataro, J.)                |
| People v Murray            | 3d Dept: 197 AD3d 1355 (Albany)                                        | denied 2/28/22<br>(Cannataro, J.)                |
| People v Oliver (Camell)   | 4th Dept: 200 AD3d 1743 (Onondaga)                                     | denied 2/28/22<br>(Rivera, J.)<br>(Appeal No. 1) |
| People v Oliver (Camell)   | 4th Dept: 200 AD3d 1744 (Onondaga)                                     | denied 2/28/22<br>(Rivera, J.)<br>(Appeal No. 2) |
| People v Oquendo           | 4th Dept: 199 AD3d 1481 (Monroe)                                       | denied 2/22/22<br>(Cannataro, J.)                |
| People v Orozco            | 1st Dept: 200 AD3d 499 (NY)                                            | denied 2/17/22<br>(Rivera, J.)                   |
| People v Parker            | 1st Dept: 200 AD3d 543 (NY)                                            | denied 2/23/22<br>(Garcia, J.)                   |
| People v Parker-El         | App Term, 1st Dept: 73 Misc 3d 129(A)<br>(Bronx)                       | denied 2/17/22<br>(Cannataro, J.)                |
| People v Perez             | 3d Dept: 199 AD3d 1171 (Schenectady)                                   | denied 2/17/22<br>(Cannataro, J.)                |

|                                |                                                       |                                                           |
|--------------------------------|-------------------------------------------------------|-----------------------------------------------------------|
| People v Peterson              | 2d Dept: 200 AD3d 1074 (Queens)                       | denied 2/24/22<br>(DiFiore, Ch. J.)                       |
| People v Pressley              | 4th Dept: 200 AD3d 1716 (Monroe)                      | denied 2/28/22<br>(DiFiore, Ch. J.)                       |
| People v Ramirez               | 2d Dept: 200 AD3d 1012 (Queens)                       | denied 2/9/22<br>(DiFiore, Ch. J.)                        |
| People v Reed                  | 4th Dept: 199 AD3d 1486 (Monroe)                      | denied 2/28/22<br>(Singas, J.)                            |
| People v Richard               | 1st Dept: 193 AD3d 621 (NY)                           | denied<br>reconsideration<br>2/25/22<br>(DiFiore, Ch. J.) |
| People v Richardson            | 2d Dept: 200 AD3d 984 (Kings)                         | denied 2/23/22<br>(Garcia, J.)                            |
| People v Rios                  | App Div, 2d Dept: 2021 NY Slip Op<br>73052(U) (Kings) | dismissed 2/8/22<br>(Wilson, J.)                          |
| People v Robinson              | 2d Dept: 200 AD3d 908 (Nassau)                        | denied 2/28/22<br>(Wilson, J.)                            |
| People v Rodriguez<br>(Jose)   | 1st Dept: 199 AD3d 469 (NY)                           | denied 2/2/22<br>(Garcia, J.)                             |
| People v Rodriguez<br>(Sergio) | 1st Dept: 199 AD3d 471 (NY)                           | denied 2/28/22<br>(Cannataro, J.)                         |
| People v Rodriquez             | 2d Dept: 194 AD3d 1078 (Dutchess)                     | denied 2/28/22<br>(Singas, J.)                            |
| People v Rosario               | 1st Dept: 200 AD3d 567 (Bronx)                        | denied 2/17/22<br>(Rivera, J.)                            |
| People v Saddler               | 4th Dept: 200 AD3d 1645 (Erie)                        | denied 2/17/22<br>(Rivera, J.)                            |
| People v Sanon                 | 4th Dept: 198 AD3d 1331 (Monroe)                      | denied 2/14/22<br>(Cannataro, J.)                         |
| People v Santillan             | 2d Dept: 200 AD3d 1074 (Queens)                       | denied 2/22/22<br>(Garcia, J.)                            |
| People v Scarver               | App Div, 4th Dept, 11/30/21 (Erie)                    | dismissed 2/28/22<br>(Wilson, J.)                         |
| People v Scott                 | 2d Dept: 200 AD3d 810 (Westchester)                   | denied 2/17/22<br>(Rivera, J.)                            |
| People v Serrano               | 4th Dept: 196 AD3d 1134 (Genesee)                     | denied<br>reconsideration<br>2/22/22<br>(Cannataro, J.)   |
| People v Shakoor               | 1st Dept: 198 AD3d 490 (Bronx)                        | denied 2/14/22<br>(Cannataro, J.)                         |
| People v Shutsha               | 1st Dept: 199 AD3d 592 (NY)                           | denied 2/15/22<br>(Cannataro, J.)                         |
| People v Smith                 | App Div, 2d Dept: 2021 NY Slip Op<br>71139(U) (Kings) | dismissed 2/16/22<br>(Cannataro, J.)                      |
| People v South                 | 2d Dept: 200 AD3d 812 (Kings)                         | denied 2/22/22<br>(Cannataro, J.)                         |
| People v Spruill               | 1st Dept: 200 AD3d 475 (NY)                           | denied 2/23/22<br>(Garcia, J.)                            |
| People v Sweet                 | 3d Dept: 200 AD3d 1315 (Montgomery)                   | denied 2/28/22<br>(DiFiore, Ch. J.)                       |

## MEMORANDA

931

|                              |                                                                            |                                     |
|------------------------------|----------------------------------------------------------------------------|-------------------------------------|
| People v Szambel             | 2d Dept: 200 AD3d 1077 (Queens)                                            | denied 2/28/22<br>(Singas, J.)      |
| People v Thomas<br>(Antwan)  | 4th Dept: 199 AD3d 1398 (Monroe)                                           | denied 2/25/22<br>(Wilson, J.)      |
| People v Thomas (Roger)      | 2d Dept: 200 AD3d 912 (Kings)                                              | denied 2/25/22<br>(DiFiore, Ch. J.) |
| People v Thompson            | 1st Dept: 200 AD3d 435 (NY)                                                | denied 2/17/22<br>(Rivera, J.)      |
| People v Torres (Andres)     | App Term, 2d Dept, 2d, 11th & 13th Jud<br>Dists: 73 Misc 3d 130(A) (Kings) | denied 2/14/22<br>(Cannataro, J.)   |
| People v Torres (Luis)       | 1st Dept: 200 AD3d 435 (NY)                                                | denied 2/15/22<br>(Cannataro, J.)   |
| People v Trifunovski         | 4th Dept: 199 AD3d 1344 (Onondaga)                                         | denied 2/3/22<br>(Rivera, J.)       |
| People v Trigga              | 3d Dept: 200 AD3d 1217 (Schenectady)                                       | denied 2/28/22<br>(Singas, J.)      |
| People v Villar              | 1st Dept: 201 AD3d 445 (NY)                                                | denied 2/17/22<br>(Rivera, J.)      |
| People v Williams<br>(Lance) | 4th Dept: 199 AD3d 1480 (Livingston)                                       | denied 2/16/22<br>(Cannataro, J.)   |
| People v Williams (Lee)      | 4th Dept: 199 AD3d 1446 (Onondaga)                                         | denied 2/25/22<br>(Wilson, J.)      |
| People v Wilson (Keith)      | 3d Dept: 199 AD3d 1130 (Tioga)                                             | denied 2/22/22<br>(Cannataro, J.)   |
| People v Wilson<br>(Shamduh) | App Div, 2d Dept: 2021 NY Slip Op<br>75882(U) (Kings)                      | dismissed 2/24/22<br>(Singas, J.)   |
| People v<br>Xocoxicchojay    | 2d Dept: 198 AD3d 937 (Suffolk)                                            | denied 2/16/22<br>(Cannataro, J.)   |
| People v Yanez               | 2d Dept: 180 AD3d 816 (Nassau)                                             | denied 2/28/22<br>(Wilson, J.)      |
| People v Yarbrough           | 1st Dept: 194 AD3d 450 (NY)                                                | denied 2/23/22<br>(Cannataro, J.)   |
| People v Yeomas              | 4th Dept: 200 AD3d 1631 (Erie)                                             | denied 2/24/22<br>(Rivera, J.)      |
| People v Zabala              | App Term, 1st Dept: 73 Misc 3d 129(A)<br>(NY)                              | denied 2/22/22<br>(Cannataro, J.)   |
| People v Zubradt             | 2d Dept: 198 AD3d 825 (Dutchess)                                           | denied 2/15/22<br>(Cannataro, J.)   |

**APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL****Decisions of Appellate Division Justices \***

(February 1, 2022 through February 28, 2022)

|                  |                                      |                                   |
|------------------|--------------------------------------|-----------------------------------|
| People v Bryant  | 3d Dept: 200 AD3d 1483 (Albany)      | granted 2/17/22<br>(Clark, J.)    |
| People v Serrano | 3d Dept: 200 AD3d 1340 (Schenectady) | granted 2/1/22<br>(Colangelo, J.) |

---

\* Includes only applications that were granted.

[185 NE3d 24, 164 NYS3d 545]

In the Matter of YVONNE GRAY, Respondent, v R. ANTHONY  
LAFOUNTAIN, as Town Supervisor of Town of Penfield, et  
al., Appellants.

Decided March 17, 2022

### SUMMARY

APPEAL from a final determination of respondent Town Board of the Town of Penfield, dated September 22, 2021. The determination suspended petitioner from her job for a period of two months without pay. The appeal brings up for review an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 30, 2021, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Monroe County). The Appellate Division, with two Justices dissenting, had (1) modified, on the law, a determination of respondents which had terminated petitioner's employment with respondent Town of Penfield; and (2) remitted the matter to respondent Town Board of the Town of Penfield for imposition of an appropriate penalty less severe than termination. The modification consisted of granting the petition in part by annulling that part of the determination finding petitioner guilty under charges one and two and vacating the penalty of termination. The Appellate Division confirmed the determination as modified.

*Matter of Gray v LaFountain*, 193 AD3d 1324, reversed.

### HEADNOTE

#### Civil Service — Termination of Employment

Respondent Town Board's determination suspending petitioner from her job for a period of two months without pay and the Appellate Division order annulling that part of respondents' previous determination finding petitioner guilty under charges one and two and vacating the penalty of termination were reversed. Substantial evidence supported respondents' determination finding petitioner guilty of charges one and two. Moreover, in light of all the circumstances, including the unchallenged findings of guilt on charges three and four, the penalty of termination was not so disproportionate to the offenses as to be shocking to one's sense of fairness.

### APPEARANCES OF COUNSEL

*Harris Beach PLLC*, Pittsford (*Joshua D. Steele* and *Daniel J. Palermo* of counsel), for appellants.

*Hancock Estabrook, LLP*, Syracuse (*John G. Powers* of counsel), for respondent.



**OPINION OF THE COURT**

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), determination appealed from and order of the Appellate Division brought up for review reversed, with costs, and petition dismissed. Substantial evidence supports respondents' determination finding petitioner guilty of charges one and two. Moreover, in light of all the circumstances, including the unchallenged findings of guilt on charges three and four, the penalty of termination was not so disproportionate to the offenses as to be shocking to one's sense of fairness (*see Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 233-235 [1974]).

Chief Judge DiFIORE and Judges RIVERA, GARCIA, WILSON, SINGAS and CANNATARO concur; Judge TROUTMAN took no part.

---

[185 NE3d 504, 165 NYS3d 22]

In the Matter of IRELYNN S. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES, Respondent; MAURICE S., Appellant.

Decided March 17, 2022

**SUMMARY**

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 20, 2020. The Appellate Division dismissed respondent's appeal from an order of the Family Court of Onondaga County (Michele Pirro Bailey, J.), which had, among other things, terminated respondent's parental rights with respect to the child in a proceeding pursuant to Social Services Law § 384-b.

*Matter of Irelynn S. (Maurice S.)*, 188 AD3d 1744, affirmed.

**HEADNOTE****Appeal — Dismissal**

The Appellate Division order dismissing the appeal by respondent in a proceeding pursuant to Social Services Law § 384-b from an order terminating his parental rights was affirmed as he failed to raise any arguments that warranted reversal of the Appellate Division order and he did not dispute, before the Court of Appeals, that his failure to appear constituted a default.

**APPEARANCES OF COUNSEL**

*Hiscock Legal Aid Society*, Syracuse (*Philip Rothschild* of counsel), for appellant.

*Robert A. Durr*, Onondaga County Attorney, Syracuse (*Joshua LaRock* of counsel), for respondent.

*Susan B. Marris*, Manlius, Attorney for the Child.

**OPINION OF THE COURT**

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs. Appellant has failed to raise any arguments that warrant reversal of the Appellate Division order. Before this Court, appellant does not dispute the Appellate Division's determination that his failure to appear constituted a default.

Concur: Chief Judge DiFIORE and Judges GARCIA, SINGAS, CANNATARO and TROUTMAN. Judge RIVERA dissents in an opinion, in which Judge WILSON concurs.

RIVERA, J. (dissenting). The only reviewable issue before us is whether the Appellate Division properly dismissed appellant father's appeal from a Family Court order terminating his parental rights on the ground that appellant defaulted. That decision was in error because appellant appeared through counsel during the fact-finding and dispositional hearings, as acknowledged by Family Court, and in accordance with the Family Court Act and the CPLR (*see* Family Ct Act § 165; CPLR 3215 [a]).

Appellant father appeared with counsel at the initial Family Court appearance in this proceeding to terminate his parental rights on September 25, 2018. At that appearance, appellant entered a denial to the allegations in the termination petition, and counsel informed the court that appellant "wants his child." The court scheduled a fact-finding hearing for January. In the interim, appellant's counsel died, and appellant appeared with new counsel during a planning and continuing review hearing. At the joint fact-finding and dispositional hearings on January 10, 2019, appellant did not appear in person, but his counsel was present. The court asked counsel where appellant was; counsel advised the court that he had "anticipated" his client "being here this morning." Counsel noted that he knew that "[t]he [c]ourt [was] going to proceed," and "ask[ed] not to participate in the fact-finding portion of th[e] proceed-

ing.” The court went ahead with the proceeding. Later during the fact-finding hearing, the court explained that it was “draw[ing] the strongest negative inference possible from [appellant’s] failure to personally appear,” but “recognize[d] his counsel ha[d] been present and remained silent throughout [the] proceedings.” At the close of the dispositional hearing, the court again drew the “strongest negative inference possible from [appellant’s] personal failure to appear and to present any evidence even on the consideration of the best interest of the child,” and again “acknowledge[d] that [counsel] ha[d] remained present and remained silent.”

As relevant to this appeal, Family Court utilized a form order (see NY Family Ct Form TPR-2, Findings of Fact, Conclusions of Law and Order of Disposition—Permanent Neglect [Aug. 2010], available at <https://www.nycourts.gov/LegacyPDFS/FORMS/familycourt/pdfs/tp-2.pdf> [last visited Mar. 4, 2022], cached at <https://www.nycourts.gov/reporter/webdocs/FamilyCourtForm-TPR2.pdf>) in issuing its findings of fact and conclusions of law, including a checkbox format for the following prefatory findings: (1) appellant appeared at the September 25, 2018 hearing; (2) at that hearing appellant denied the allegations and the matter proceeded to a fact-finding hearing; and (3) appellant did not appear and counsel appeared on behalf of appellant at the January 10, 2019 hearing. After setting forth a narrative explanation for its findings, Family Court ordered the termination of appellant’s parental rights.

On appeal, appellant maintained that, contrary to respondent Onondaga County Department of Children and Family Services’ (DCFS) argument, appellant did not default because he appeared through counsel, Family Court never categorized his absence as a default, and the court proceeded to a fact-finding hearing rather than by inquest, further evincing that the court did not treat this as a decision on default. In support of his argument, appellant cited the CPLR and, among other cases, *Matter of Kwasi S.* (221 AD2d 1029, 1030 [4th Dept 1995]), which held that, “[w]here a party fails to appear for a hearing but is represented by counsel, the order is not one entered upon the default of the aggrieved party and appeal is not precluded (see, CPLR 321 [a]; 5511; Family Ct Act § 1118).” The Appellate Division dismissed the appeal on the ground that appellant “failed to appear at the dispositional hearing and his attorney, although present, elected not to participate in the father’s absence,” thus “constitut[ing] a default” (188 AD3d

1744, 1744 [4th Dept 2020], citing *Matter of Makia S. [Catherine S.]*, 134 AD3d 1445, 1445-1446 [4th Dept 2015], and *Matter of Shawn A. [Milisa C.B.]*, 85 AD3d 1598, 1598-1599 [4th Dept 2011] [citing CPLR 5511], *lv denied* 17 NY3d 713 [2011]).

We granted appellant leave to appeal (36 NY3d 1107 [2021]) and placed the appeal on the alternative review track under this Court's rules (*see* Rules of Ct of Appeals [22 NYCRR] § 500.11). As permitted by those rules, appellant reserved his argument that, based on his counsel's appearance, he did not default and further argued the merits of his challenge to the termination of his parental rights; respondent DCFS and the Attorney for the Child argued in kind (*see id.* § 500.11 [f]). As a jurisdictional matter, a party is not aggrieved by, and thus may not appeal, an order entered on default (*see* CPLR 5511). Appellant is correct that under the circumstances of this case, he did not default, and therefore the Appellate Division should have considered the merits of his appeal.

The CPLR applies to this termination of parental rights proceeding (*see* Family Ct Act § 165 [providing that the CPLR applies in Family Court proceedings unless some other procedure is prescribed by the Family Court Act]; Social Services Law § 371-a [providing that the procedural provisions of the Family Court Act "shall apply" in a proceeding, "to the extent that they do not conflict with the specific provisions of the social services law"]). Three provisions control the analysis of the appealability jurisdictional question. First, under CPLR 5511 "[a]n aggrieved party . . . may appeal from any appealable judgment or order except one entered upon the default of the aggrieved party." Second, CPLR 3215 (a) provides that a "default" occurs when a party "fail[s] to appear, plead or proceed to trial of an action reached and called for trial, or when the court orders a dismissal for any other neglect to proceed" (*see also* Hon. Mark C. Dillon, Practice Commentaries, McKinney's Cons Laws of NY, CPLR C3215:1; Black's Law Dictionary [11th ed 2019], default [defining default as when a party "fail(s) to appear"]). Third, with limited exceptions, in accordance with CPLR 321 (a), "[a] party . . . may prosecute or defend a civil action in person or by attorney." Given the clarity of the CPLR, it is unsurprising that the Family Court Act Practice Commentaries conclude that "unless the party is ordered by the court to appear, a failure to appear in person for any reason at a hearing cannot legally be deemed a default"

(Merril Sobie, 2017 Supp Practice Commentaries, McKinney's Cons Laws of NY, Family Ct Act § 165).<sup>1</sup>

Here, appellant did not “fail[ ] to appear, plead or proceed to trial” (CPLR 3215 [a]). As permitted under CPLR 321 (a), appellant did not appear in person and instead appeared at the fact-finding hearing through counsel. Family Court acknowledged counsel's appearance and did not treat appellant as a party in default. Specifically, and as appellant argued before the Appellate Division, Family Court proceeded to a fact-finding hearing on the disputed termination petition, rather than by inquest—an alternative available only where the party fails to appear—and an option rejected by Family Court on the form order. DCFS also did not move for entry of a default judgment, as would have been required for the Court to proceed by inquest (see CPLR 3215 [b]; *Franklin Credit Mgt. Corp. v Wik*, 75 AD3d 1145, 1146 [4th Dept 2010] [holding trial court “erred in granting a default judgment inasmuch as plaintiff did not move for such relief”]; cf. *Deutsche Bank Natl. Trust Co. v Gavri-elova*, 130 AD3d 674, 676 [2d Dept 2015] [holding that compliance with CPLR 3215 notice provision is a jurisdictional predicate for entry of default judgment]; see generally Siegel & Connors, NY Prac § 293 [6th ed 2018]).

The fact that counsel stayed silent during the proceedings—a tactical choice (see *People v Aiken*, 45 NY2d 394, 399-400 [1978])—does not support finding appellant in default. DCFS filed the termination petition and thus had the burden to establish, by clear and convincing evidence, its case for termination of appellant's parental rights under Social Services Law § 384-b. DCFS had to clear three hurdles to meet its burden. It had to establish that it made “diligent efforts to encourage and strengthen the parental relationship,” that appellant “permanently neglected the child, as defined in [the] Social Services Law,” and lastly, at the dispositional hearing, it had to persuade

---

1. Professor Sobie has argued that in article 10 proceedings and other contexts, Family Court has been “too quick . . . to conclude that a respondent has defaulted,” and has further noted that “the ‘always bring your client’ practice is grossly inefficient. To cite two of several downsides, a party may miss a day's employment (or several days), and useless appearances breed frustrated and often angry parties” (Merril Sobie, 2013 Supp Practice Commentaries, McKinney's Cons Laws of NY, Family Ct Act § 1042). These are salient considerations. And it may be, as Professor Sobie observes, that while “CPLR Section 321 (and its common law antecedent) is presumably applicable in Family Court[,] . . . the court usually functions as though the rule doesn't exist” (*id.*). At least, here, Family Court did not find appellant in default.

the court that termination of parental rights was in the “best interests of the child” (*Matter of Hailey ZZ. [Ricky ZZ.]*, 19 NY3d 422, 429-430 [2012] [internal quotation marks omitted], quoting Social Services Law § 384-b [7] [a]; see Family Ct Act § 614 [1] [c]; *Matter of Nathaniel T.*, 67 NY2d 838, 842 [1986]; *Matter of Jamie M.*, 63 NY2d 388, 393 [1984]; *Matter of Star Leslie W.*, 63 NY2d 136, 142 [1984]; *Matter of Sheila G.*, 61 NY2d 368, 384-385 [1984]; see also *Santosky v Kramer*, 455 US 745 [1982]; *Matter of Michael B.*, 58 NY2d 71 [1983]). Appellant had no obligation to present proof, but rather needed only to put DCFS to its burden. And that is what occurred here, where Family Court, having acknowledged that appellant’s counsel was present and that appellant had denied the allegations, proceeded, as scheduled, with a fact-finding hearing and eventual disposition of DCFS’ petition (see e.g. *Matter of Cassandra M.*, 260 AD2d 961, 963 [3d Dept 1999] [holding that, where a party has not defaulted, “the proper course (is) . . . to require petitioner to present its proof, especially where petitioner was ready to proceed (as we would expect on the day of a scheduled fact-finding hearing) and respondents’ attorneys and the Law Guardian were present”]).<sup>2</sup>

Notably, at the hearing, counsel did not seek to be relieved as attorney for appellant, nor did counsel state that he was unable to diligently or competently represent appellant (see Rules of Professional Conduct [22 NYCRR 1200.0] rules 1.1 [a]; 1.3 [a]; 1.4 [a]; 1.16 [b] [1]). For his part, appellant did not previously seek counsel’s removal or indicate to the court significant dissatisfaction with counsel’s performance, which would have placed in question counsel’s representative status at the hearing. In point of fact, there is no dispute that Family Court recognized that counsel was authorized to speak—or, as here, to stay silent—on appellant’s behalf.

---

2. Family Court’s negative inference from appellant’s failure to appear is the same inference that may be drawn if appellant appeared but chose not to speak, and thus does not support a different interpretation of the record below (see e.g. *Matter of Nassau County Dept. of Social Servs. v Denise J.*, 87 NY2d 73, 79 [1995] [“A trier of fact may draw the strongest inference that the opposing evidence permits against a witness who fails to testify in a civil proceeding”], citing *Matter of Commissioner of Social Servs. v Philip De G.*, 59 NY2d 137, 141 [1983]; *Matter of Ariana F.F. [Robert E.F.]*, 202 AD3d 1440, 1442 [“(Parents) failed to testify, and the court properly drew the strongest possible negative inferences against them based on that failure”], citing *Matter of Noah C. [Greg C.]*, 192 AD3d 1676, 1678 [4th Dept 2021], *Matter of Jack S. [Leah S.]*, 176 AD3d 1643, 1644 [4th Dept 2019], and *Matter of Chelsea B. [Michael W.]*, 89 AD3d 1499, 1500 [4th Dept 2011], *lv denied* 18 NY3d 807 [2012]).



Since appellant did not default, he is an aggrieved party under CPLR 5511 and the Family Court order is appealable. Thus, the Appellate Division's dismissal has no record support or legal basis in the CPLR. Contrary to the majority's cursory treatment of this appeal and its one sentence conclusion that appellant failed "to raise any arguments that warrant reversal" (majority mem at 934), appellant's jurisdictional analysis is sound. And because this Court may not, in the first instance, address appellant's claims on the merits, the order of the Appellate Division should be reversed and the matter remitted to that Court. Appellant is entitled to have the Appellate Division review, under its plenary factual, legal, and discretionary powers, the merits of his challenge to the termination of his parental rights.

---

[185 NE3d 496, 165 NYS3d 14]

DARRELLE REVIS et al., Appellants, v NEIL SCHWARTZ et al.,  
Respondents.

Argued February 9, 2022; decided March 17, 2022

#### SUMMARY

APPEAL, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 30, 2020. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Westchester County (Sam D. Walker, J.; op 2017 NY Slip Op 33259[U] [2017]), which had (1) granted defendants' motion to compel arbitration; and (2) stayed the action pending arbitration.

*Revis v Schwartz*, 192 AD3d 127, affirmed.

#### HEADNOTE

**Arbitration — Matters Arbitrable — Gateway Questions of Arbitrability**

In an action alleging intertwined claims of breach of fiduciary duty, unjust enrichment, and equitable fraud and seeking rescission of all the parties' agreements plus damages and disgorgement of fees arising therefrom, the Appellate Division properly concluded that the gateway questions of arbitrability should be resolved by the arbitrator.

#### APPEARANCES OF COUNSEL

*Williams & Connolly LLP*, Washington, D.C. (*Mark S. Levinstein*, of the District of Columbia bar, admitted pro hac vice,

and *William I. Stewart*, of the District of Columbia bar, admitted pro hac vice, of counsel), and *Krovatin Nau LLC*, Newark, New Jersey (*Helen A. Nau* of counsel), for appellants.

*Duane Morris LLP*, New York City (*Mario A. Aieta* of counsel), for respondents.

#### OPINION OF THE COURT

##### MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs. Based on the allegations in the complaint, alleging intertwined claims of breach of fiduciary duty, unjust enrichment, and equitable fraud and seeking rescission of all the parties' agreements plus damages and disgorgement of fees arising therefrom, the Appellate Division properly concluded that the gateway questions of arbitrability should be resolved by the arbitrator (*see Garthon Bus. Inc. v Stein*, 30 NY3d 943, 944 [2017]; *Life Receivables Trust v Goshawk Syndicate 102 at Lloyd's*, 14 NY3d 850, 851 [2010]; *Matter of Board of Educ. of Watertown City School Dist. [Watertown Educ. Assn.]*, 93 NY2d 132, 143 [1999]; *see generally Henry Schein, Inc. v Archer & White Sales, Inc.*, 586 US —, 139 S Ct 524 [2019]).

Chief Judge DiFIORE and Judges RIVERA, GARCIA, WILSON, SINGAS, CANNATARO and TROUTMAN concur.

Order affirmed, with costs, in a memorandum.

---

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS, INC., Respondent.

Submitted March 14, 2022; decided March 17, 2022

Reported below, 177 AD3d 493.

Motion by Robert Hockett, et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

---

In the Matter of AMBER N., Respondent, v ANDREW S., Appellant.

Submitted December 20, 2021; decided March 17, 2022

Reported below, 200 AD3d 466.



Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

---

In the Matter of MICHAEL A. DEEM, Appellant, v GRETCHEN WALSH, a Justice of the Supreme Court, Westchester County, Respondent.

Submitted January 24, 2022; decided March 17, 2022

Reported below, 200 AD3d 779.

On the Court's own motion, appeals dismissed, without costs, upon the grounds that, as to the December 8, 2021 Appellate Division order, no substantial constitutional question is directly involved and, as to the "Papers Rejection Notice," the paper appealed from is neither a judgment nor an order from which an appeal to this Court may be taken (*see* CPLR 5512 [a]; 5601). Motion for leave to appeal denied.

Chief Judge DiFIORE took no part.

---

DEUTSCHE BANK NATIONAL TRUST COMPANY, Respondent, v SHARON LE-MOND, Appellant, et al., Defendants.

Decided March 17, 2022

Reported below, 198 AD3d 610.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

---

JPMORGAN CHASE BANK, NATIONAL ASSOCIATION, Respondent, v KENNETH LEE, Appellant, et al., Defendants.

Submitted November 1, 2021; decided March 17, 2022

Reported below, 186 AD3d 687; 186 AD3d 685; 2021 NY Slip Op 63036(U).

Motion for reargument of motion for leave to appeal denied [*see* 37 NY3d 1021 (2021)].

Judge TROUTMAN took no part.

---

In the Matter of CAVALIER D. KNIGHT, Appellant, v CITY OF NEW YORK et al., Respondents.

Decided March 17, 2022

Reported below, 200 AD3d 459.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

---

In the Matter of SALVATORE F. LANZA, an Attorney, Appellant. GRIEVANCE COMMITTEE OF THE FIFTH JUDICIAL DISTRICT, Respondent.

Submitted November 29, 2021; decided March 17, 2022

Reported below, 199 AD3d 154.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

---

RODNEY LONG, Appellant, v GRAPHIC CONTROLS ACQUISITION CORP. et al., Respondents.

Submitted November 8, 2021; decided March 17, 2022

Reported below, 192 AD3d 1653.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

---

In the Matter of LYNNE F., Respondent, v THOMAS G., Appellant.

Submitted December 20, 2021; decided March 17, 2022

Reported below, 198 AD3d 1112.

Motion for leave to appeal dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511). Motion for poor person relief dismissed as academic.

---

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respondents. (Action Nos. 1, 2 and 3.)

NELLA MANKO, Appellant, v LAW OFFICES OF DAVID A. GABAY et al., Respondents. (Action No. 4.)

Decided March 17, 2022

Reported below, 2021 NY Slip Op 72231(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the actions within the meaning of the Constitution.

Chief Judge DiFiore took no part.

---

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAKOTA W. BALDWIN, Appellant.

Submitted March 14, 2022; decided March 17, 2022

Reported below, 197 AD3d 1442.

Motion for assignment of counsel granted and Clea Weiss, Esq., 10 North Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

---

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEVON T. BUTLER, Appellant.

Submitted February 14, 2022; decided March 17, 2022

Reported below, 196 AD3d 28.

Motion by New York State Association of Criminal Defense Lawyers for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed letter brief is accepted as filed. One copy of the letter brief must be served, an original and two copies filed, and the letter brief submitted in digital format within seven days.

---

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE, Appellant, v SUPERINTENDENT OF MARCY CORRECTIONAL FACILITY et al., Respondents.

Submitted January 31, 2022; decided March 17, 2022

Motion for reconsideration of this Court's December 14, 2021 dismissal order denied [*see* 37 NY3d 1106 (2021)].

Judge TROUTMAN took no part.

---

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* RICHARD VALE,  
Appellant, *v* WILLIAM LEE, Superintendent, Eastern NY  
Correctional Facility, Respondent.

Submitted November 22, 2021; decided March 17, 2022

Reported below, 2021 NY Slip Op 73583(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

---

In the Matter of RAUL R. (III), a Child Alleged to be Perma-  
nently Neglected. CATHOLIC GUARDIAN SERVICES, Respon-  
dent; RAUL R., Appellant; CINTHIA R. *et al.*, Respondents.

Submitted December 27, 2021; decided March 17, 2022

Reported below, 199 AD3d 594.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

---

KIM E. SCHOCH, Respondent, *v* LAKE CHAMPLAIN OB-GYN, P.C.,  
Appellant.

COLUMBIA MEMORIAL HOSPITAL, Appellant, *v* MARCEL E. HINDS,  
Respondent.

MAPLE MEDICAL, LLP, Appellant, *v* JOSEPH SCOTT, M.D., Re-  
spondent, *et al.*, Defendant. (And Five Other Appeals.)

Submitted March 14, 2022; decided March 17, 2022

Reported below, 184 AD3d 338; 188 AD3d 1337; 191 AD3d 81.

Motion by Wycoff Heights Medical Center for leave to appear *amicus curiae* on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

---

MAKTUMMA TESHABAEVA et al., Respondents, v FAMILY HOME CARE SERVICES OF BROOKLYN & QUEENS, INC., et al., Appellants.

Submitted December 20, 2021; decided March 17, 2022

Reported below, 198 AD3d 500.

Motion to dismiss appeal granted and appeal dismissed, with four hundred dollars costs and one hundred dollars costs of motion, upon the ground that no substantial constitutional question is directly involved.

---

CLIFFORD A. ARREY, Appellant, v TUCK IT AWAY-EAST SIDE, INC., et al., Respondents.

Submitted December 20, 2021; decided March 22, 2022

Reported below, 2021 NY Slip Op 74961(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

---

CORTLANDT STREET RECOVERY CORP., Respondent, v TPG CAPITAL MANAGEMENT, L.P., et al., Respondents. BASIL VASILIOU, Proposed Intervenor-Appellant.

Decided March 22, 2022

Reported below, 2021 NY Slip Op 74044(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

---

In the Matter of NESTOR DOMINGUEZ, Appellant, v JAMES O'NEILL et al., Respondents.

Submitted December 13, 2021; decided March 22, 2022

Reported below, 179 AD3d 574.

Motion for reargument of motion for leave to appeal denied [see 37 NY3d 1043 (2021)].

Judge TROUTMAN took no part.

---

In the Matter of JOSEPH TODD LERNER et al., Appellants, v  
CREDIT SUISSE SECURITIES (USA) LLC, Respondent.

Submitted December 20, 2021; decided March 22, 2022

Reported below, 193 AD3d 649.

Motion by National Employment Lawyers Association/New York et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

Judge WILSON took no part.

---

NELLA MANKO, Appellant, v DR. DANA MANNOR et al., Respondents, et al., Defendants.

NELLA MANKO, Appellant, v DANA MANNOR et al., Respondents, et al., Defendants.

Submitted February 7, 2022; decided March 22, 2022

Reported below, 2021 NY Slip Op 63173(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE took no part.

---

CHARLES ROCHESTER, Appellant, v THE CITY OF NEW YORK et al., Respondents.

Submitted December 6, 2021; decided March 22, 2022

Reported below, 2021 NY Slip Op 72333(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

---

ROY TAYLOR, Appellant, v NYPD PROPERTY CLERK et al., Respondents.

Submitted December 27, 2021; decided March 22, 2022

Reported below, 2021 NY Slip Op 65272(U).

Motion for reargument of motion for leave to appeal denied [see 37 NY3d 1090 (2021)]. Motion for poor person relief dismissed as academic.

Judge TROUTMAN took no part.

---

VILLAGE OF DOBBS FERRY, Respondent, v LANDING ON THE WATER AT DOBBS FERRY HOMEOWNERS ASSOCIATION, INC., Appellant.

Submitted December 6, 2021; decided March 22, 2022

Reported below, 198 AD3d 840.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

---

XIN ZHENG ZHAN et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Submitted December 27, 2021; decided March 22, 2022

Reported below, 199 AD3d 1045.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

---

HAIM ZITMAN, Appellant, v SUTTON LLC et al., Respondents.

Submitted January 10, 2022; decided March 22, 2022

Reported below, 195 AD3d 483.

Motion for reargument of motion for leave to appeal denied [see 37 NY3d 915 (2021)].

Judge TROUTMAN took no part.

---